

Case called at 11.30AM.

Pass over.

Again case called.

Finally called at 5.15PM.

No representation on behalf of the DHR.

The petition is of the year, 2023 and despite giving sufficient opportunities, DHR has not taken steps. Per contra on 16.07.2025, the JDR has submitted that on account of delivery of possession to the DHR, the execution petition does not survive for consideration. The Hon'ble Supreme Court in the ruling reported in Periyammal (dead) through Lrs and Otrhers v/s V.Rajamani and another (Civil Appl. No.3640-3602/2025). It is held that the execution Petitions shall be decided and disposed of within a period of six months without fail. Hence, the Petition is dismissed for default as well as non-prosecution.

Thus the execution petition is closed.

XLIV ACC & SJ, B'luru
05.11.2025